

**SOLICITATION, OFFER, AND AWARD**

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

|                    |                        |                                                                                                                                                           |                |                                |
|--------------------|------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|--------------------------------|
| 2. CONTRACT NUMBER | 3. SOLICITATION NUMBER | 4. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB) INVITATION FOR BID<br><input type="checkbox"/> NEGOTIATED (RFP) REQUEST FOR PROPOSAL | 5. DATE ISSUED | 6. REQUISITION/PURCHASE NUMBER |
| 7. ISSUED BY       | CODE                   | 8. ADDRESS OFFER TO (If other than item 7)                                                                                                                |                |                                |

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and \_\_\_\_\_ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in \_\_\_\_\_ until \_\_\_\_\_ local time \_\_\_\_\_  
(Hour) (Date)

**CAUTION** - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

|                           |         |                                 |        |                  |
|---------------------------|---------|---------------------------------|--------|------------------|
| 10. FOR INFORMATION CALL: | A. NAME | B. TELEPHONE (NO COLLECT CALLS) |        | C. EMAIL ADDRESS |
|                           |         | AREA CODE                       | NUMBER | EXTENSION        |

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**OFFER (Must be fully completed by offeror)**

**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within \_\_\_\_\_ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

|                                                                                                                                                                 |                                                                                            |                      |                                                                              |                   |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------|----------------------|------------------------------------------------------------------------------|-------------------|
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause Number 52.232-8)                                                                                      | 10 CALENDAR DAYS (%)                                                                       | 20 CALENDAR DAYS (%) | 30 CALENDAR DAYS (%)                                                         | CALENDAR DAYS (%) |
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated): | AMENDMENT NUMBER                                                                           | DATE                 | AMENDMENT NUMBER                                                             | DATE              |
|                                                                                                                                                                 |                                                                                            |                      |                                                                              |                   |
|                                                                                                                                                                 |                                                                                            |                      |                                                                              |                   |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                | CODE                                                                                       | FACILITY             | 16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER<br>(Type or print) |                   |
| 15B. TELEPHONE NUMBER                                                                                                                                           | 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. |                      | 17. SIGNATURE                                                                | 18. OFFER DATE    |
| AREA CODE                                                                                                                                                       | NUMBER                                                                                     | EXTENSION            |                                                                              |                   |

**AWARD (To be completed by Government)**

|                                                                                                                                                                                        |                                                                                  |                                  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|----------------------------------|
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                      | 20. AMOUNT                                                                       | 21. ACCOUNTING AND APPROPRIATION |
| 22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:<br><input type="checkbox"/> 10 U.S.C. 3204(a) <input type="checkbox"/> 41 U.S.C. 3304(a) ( ) | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified) | ITEM                             |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                                             | 25. PAYMENT WILL BE MADE BY                                                      | CODE                             |
| 26. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                        | 27. UNITED STATES OF AMERICA<br><br>(Signature of Contracting Officer)           | 28. AWARD DATE                   |

**IMPORTANT** - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Previous edition is unusable

**STANDARD FORM 33 (REV. 12/2022)**  
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

## Section A - Solicitation/Contract Form

YCV-20 Maintenance and Repair

YCV-20 Maintenance and Repair

**MASTER AGREEMENT FOR THE REPAIR AND ALTERATION OF VESSELS (MARAV):** In the event the successful offeror possesses a Master Agreement for Repair and Alteration of Vessels (MARAV) with the U.S. Navy in the form of either a Master Ship Repair Agreement (MSRA) or an Agreement for Boat Repair (ABR), award for this requirement will be made in the form of a firm fixed price job order under the applicable agreement and all of the terms and conditions of the offer's existing MARAV will apply.

MSRA/ABR Number: \_\_\_\_\_

Firms who do not possess an active U.S MSRA/ABR as a Prime Contractor are ineligible for award. Non MSRA /ABR holders may request an application for an MSRA or an ABR certification by requesting an application package from: [flcy\\_msra\\_abr\\_group@us.navy.mil](mailto:flcy_msra_abr_group@us.navy.mil). Please note that the MSRA/ABR Certification process may require a year to complete.

This solicitation is intended only for sources duly authorized to operate and do business in Japan as prescribed by DFARS 252.225-7042.

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | Quantity | Unit | Unit Price | Amount |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001 | <p>YCV-20 MAINTENANCE AND REPAIR</p> <p>The Contractor shall accomplish repair and maintenance work for YCV-20 in accordance with the Attachment (I) in Section J.</p> <p>The contractor will be responsible for ship repair work to include providing the necessary management, scheduling, testing, quality assurance, technical documentations to support the YCV-20. The Contractor is required to submit an itemized breakdown of the price for each item on the form provided in Section J. Failure to submit this documentation properly completed by the specified closing date may cause rejection of the offer.</p> <p>Note- The award will be made in Japanese Yen (JPY). The USD amounts shown are for funding purposes only. FY26 Budget Exchange Rate of JPY 150.4415 per USD 1.00 applies.</p> <p>United States Dollar (USD) AMOUNT:</p> <p>Note: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.</p> <p>Pricing Arrangement: Firm Fixed Price</p> | 1        | Job  |            |        |

## Section C - Description/Specifications/Statement of Work

**C-1.0 Technical Description and Specifications:** The work to be performed hereunder shall conform to the description of work /work specification described in Section B. The Contractor shall accomplish the contract requirements listed in Attachment (I) of Section J. Actual physical shipboard work shall begin and end in accordance with the dates listed in Section F of this solicitation.

**C-2.0 Government Furnished Material:** The contractor is to coordinate the delivery and/or pick-up of all Government Furnished Material (GFM) as cited in work specification(s), supporting drawings, references and/or Statement of Work (SOW). The Contractor is required to manage all GFM upon receipt which includes monitoring, inspecting, segregating, determining nonconformance, and returning unused or nonconforming material to the Government for final disposition.

**C-3.0 Contractor Furnished Material:** The Contractor shall accomplish planning and scheduling to ensure a rational, integrated and timely plan for procurement, receipt, storage and installation of Contractor Furnished Material (CFM). All materials must meet the specified standard military performance specifications, Federal performance standards, and may require to be listed on a Qualified Products List (QPL) for shipboard installations.

**C-4.0 Descoping of Requirements:** The Government reserves the right to descope any requirement under this contract at any time and for any reason. Descopes are incorporated into the contract via Deficiency List (DLs) and can either be a partial deletion of paragraph(s) from the work specification or deletion of a work item in its entirety.

### **C-5.0 NON-NAVY OWNED CRANES:**

Sections 11.1 and 11.2 of NAVSUPFLCYINST 4200.9 series are invoked for the incidental use of non- Navy owned cranes at Navy shore installations.

#### NAVSUP FLCY STANDARD CONTRACT TEXT "NON-NAVY OWNED CRANES"

##### CONTRACTOR AND OTHER NON-NAVY OWNED WEIGHT HANDLING EQUIPMENT

**11.1** Contractor Operated Cranes (and Multi-Purpose Machines, Materials Handling Equipment (MHE) and Construction Equipment When Used as Cranes to Lift Suspended Loads) and Rigging Equipment. Non-Navy-owned cranes, multi-purpose machines, MHE and construction equipment are frequently used on Navy property to lift suspended loads. Rigging equipment may be used with these machines or by itself in contractor weight handling operations. These cranes and equipment can be from a variety of sources and are generally incidental to construction contracts, ship repair contracts, demolition contracts, maintenance and other service contracts and deliveries of supplies and equipment. Numerous organizations, including tenant activities, ships, supply departments and Facilities engineering and Acquisition Division/Resident Office in Charge of Construction (FEAD/ROICCs) have contracting authority and often the need for cranes is not anticipated when contract documents are written. The following requirements apply to any contracted work utilizing non-Navy-owned cranes (and multi-purpose machines, MHE and construction equipment used to lift loads suspended by rigging gear) and to all rigging equipment used in weight handling operations at a naval activity. These requirements do not apply to shipboard cranes or rigging equipment. These requirements also do not apply to: commercial truck mounted and articulating boom cranes used solely to deliver material and supplies where the lift consists of moving materials and supplies (not prefabricated components, structural steel or components of a systems-engineered metal building) from a truck or trailer to the ground; to cranes installed on mechanic's trucks that are utilized solely in the repair of shore-based equipment; to cranes that enter the activity but are not used for lifting; nor other machines not used to lift loads suspended by rigging equipment. The Public Works Office (PRY33) is responsible for the oversight of all contractor cranes on bases within Commander, Fleet Activities Yokosuka in accordance with COMFEACTINST 11262.1B series. However, any Weight Handling Equipment (WHE) or crane accidents shall be reported in accordance with paragraphs 11.1.h and 11.1.i:

a. The contractor is required to comply with specific activity regulations pertaining to crane safety and operation (including allowable access routes and ground loading limitations) and to notify the PRY33 office, in advance, of any cranes entering the activity or of any multi-purpose machines, MHE or construction equipment that may be used in a crane-like application to lift suspended loads. For contractor-owned cranes, machines and rigging equipment at naval activities in foreign countries, the contractor-owned cranes, machines and rigging equipment shall comply with the appropriate host nation safety standards. For floating cranes and barge-mounted mobile cranes, require a third party certification from an Occupational Safety and Health Administration (OSHA) accredited organization (or a third party certification from a state accredited organization for those states with OSHA approved state plans), a load indicating device, a wind speed indicating device and a marine type list and trim indicator readable in one-half degree increments. Third party certification is not required for floating cranes and barge-mounted mobile cranes at Navy activities in foreign countries.

b. For cranes (or other machines used to lift suspended loads) and rigging equipment at naval activities in foreign countries, the contractor shall certify that the crane (or other machine) and the rigging equipment conform to the appropriate host nation safety standards. The contractor shall also certify that all of its crane (or other machine) safety devices are enabled and functioning properly, that all personnel working on the naval activity job site have been trained to not stand under or in the fall zone of a suspended load

unless specifically allowed by USACE EM 385-1-1, and that operators have been trained to not bypass safety devices (e.g., anti-two block devices, Load Moment Indicator's) during lifting operations. The contractor-owned crane certifications is required to be available on the crane or in the contractor's on-site office for rigging operations.

c. The contractor-owned mobile cranes, commercial truck mounted cranes and articulating boom cranes with Original Equipment Manufacturer (OEM) rated capacities of greater than 2000 pounds, require that the crane operator be designated as qualified by a source that qualifies crane operators (i.e., a union, a government agency or an organization that tests and qualifies crane operators). Proof of current qualification shall be provided to PRY33. Operators of cranes used in construction at activities under US jurisdiction shall follow the qualification and certification requirements of 29 CFR 1926.1427. For Navy activities in foreign countries, follow host nation requirements as applicable in lieu of the CFR.

d. The contractor is required to certify (appendix P, figure P-1) that the crane operator is qualified and trained for the operation of the crane or machine to be used.

e. For multi-purpose machines, MHE and construction equipment used to lift loads suspended by rigging equipment, the contractor is required to provide proof of authorization from the machine OEM that the machine is capable of making lifts of loads suspended by rigging equipment. Written approval from a qualified registered professional engineer, after a safety analysis is performed, is allowed in lieu of the OEM's approval. The contractor is required to demonstrate that the equipment is properly configured to make such lifts and is equipped with a load chart.

Note: MHE attachments covered by and used in accordance with NAVSEA SW023-AH- WHM-010 have been pre-approved for use with all MHE. These attachments are exempt from the OEM authorization requirement above.

f. The contractor is required to provide all hooks used on cranes, hoists, other machines and rigging gear shall have self-closing latches or the throat opening shall be "moused" (secured with wire, rope, heavy tape, etc.) or otherwise secured to prevent the attached item from coming free of the hook under a slack condition. The following exceptions apply and shall be approved by the contractor's technical organization (i.e. the Japan Construction Information Center Foundation) with PRY33 coordination: items where the hook throat is fully obstructed and not available for manual securing; and lifts where securing the hook throat increases the danger to personnel, such as forge shop, dip tank or underwater work.

g. The contractor is required to have a critical lift plan for each of the following lifts: lifts over 75 percent of the capacity of the crane, hoist or other machine (lifts over 50 percent of the capacity of a barge- mounted mobile crane's hoists) at any radius of lift; lifts involving more than one crane, hoist or other machine; lifts of personnel (lifts of personnel suspended by rigging equipment from multi-purpose machines, MHE or construction equipment shall not be permitted); lifts made in the vicinity of overhead power lines (see subparagraph (7); erection of cranes; lifts of submerged or partially submerged objects (see exceptions in paragraph 10.4.1.e); lifts involving binding conditions; lifts of hazardous materials (see exceptions in paragraph 10.4.1.a); and lifts involving non-routine rigging or operation, sensitive equipment or unusual safety risks. The plan shall include the following as applicable:

- (1) The size and weight of the load to be lifted, including crane (or other machine) equipment and rigging equipment that add to the weight. The OEM's maximum load capacities for the entire range of the lift shall also be provided.
- (2) The lift geometry, including the crane (or other machine) position, boom length and angle, height of lift and radius for the entire range of the lift. Applies to both single and multiple-crane/machine lifts.
- (3) A rigging plan, showing the lift points, rigging equipment and rigging procedures.
- (4) The environmental conditions under which lift operations are to be stopped.
- (5) For lifts of personnel, the plan shall demonstrate compliance with the requirements of 29 CFR 1926.1431. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.
- (6) For barge mounted mobile cranes, barge stability calculations identifying crane placement/footprint; barge list and trim based on anticipated loading; and load charts based on calculated list and trim specific to the barge the crane is mounted on. The amount of list and trim shall be within the crane OEM's requirements.
- (7) For lifts in the vicinity of overhead power lines (i.e., if any part of the crane or other machine, including the fully extended boom of a telescoping boom crane or machine or the load could approach the distances noted in figure 10-3 during a proposed operation), the plan shall demonstrate compliance with 29 CFR 1926.1408-1411. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.

h. The contractor shall notify the PRY33 office as soon as practical, but not later than four hours, after any WHE accident is identified in NAVFAC P-307 section 12. The contractor is required to secure the accident site and protect evidence until released by the PRY33 office. The contractor shall conduct an investigation to establish the root cause(s) of any WHE accident, near miss or unplanned occurrence. Crane operations shall not proceed until the cause is determined and corrective actions have been implemented to the satisfaction of PRY33 office and/or the contracting officer. The contractor shall certify (appendix P, figure P-1) that the operators, riggers and company officials are aware of the actions required in the event of an accident as specified in the contract.

- i. The contractor shall provide a report for an accident or near miss within 30 days to the BSV&E office and the contracting officer using the appropriate form provided in section 12 consisting of a summary of circumstances, an explanation of causes(s), photographs (if available) and corrective actions taken. These notifications and reporting requirements are in addition to those promulgated by OPNAVINST 5100.23 and related command instructions.
- j. The contractor shall certify (appendix P, figure P-1) that signal persons employed in construction work are qualified in accordance with 29 CFR 1926.1428. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.
- k. The contractor shall certify (appendix P, figure P-1) that the riggers are qualified to perform the work by either signing a statement of compliance, providing proof of successful completion of a rigging apprenticeship by a union or other organization providing apprenticeship training or proof of successful completion of training courses from a recognized source such as a trade union, a government agency or an organization that tests and qualifies riggers.
- l. The following additional documentation is required for contracts involving tower cranes:
  - (1) Foundation design and requirements.
  - (2) Installation instructions.
  - (3) Assembly and disassembly instructions including climbing/jumping instructions if applicable.
  - (4) Operating manual, limitations and precautions.
  - (5) Periodic inspection and maintenance requirements. For tower cranes at Navy activities in foreign countries, the tower cranes shall comply with the appropriate host nation safety standards and industry consensus safety standards (e.g., EN or ISO standards).
- m. The following additional requirements apply to contracts involving work on telecommunication towers or with personnel hoists on telecommunication towers:
  - (1) Base mounted drum hoists used in communication tower work shall comply with TIA-1019, TIA- 222G, ASME B30.7 and 29 CFR 1926.552 and 29 CFR 1926.553. For Navy activities in foreign countries follow host nation requirements as applicable in lieu of the CFR.
  - (2) When used for hoisting personnel, base mounted drum hoists shall comply with OSHA Instruction CPL 02-01-056; National Association of Tower Erectors standard "Base Mounted Hoist Mechanism Design Use Standard for Lifting Personnel While Working on Telecommunication Structures"; ANSI/ASSE A10.22; and AMSE B30.23 (or equivalent host nation safety standards for Navy activities in foreign countries).
  - (3) The use of a pickup truck or any other equipment besides a base mounted drum hoist for hoisting materials and/or personnel is prohibited.
  - (4) Rough-terrain forklifts, bulldozers and similar equipment may be utilized for towing and anchorage purposes of guys. The use of such equipment for trolley/tag and load lines is prohibited, with the exception of using construction equipment for the sole purpose of anchorage that will not be moved during operations.
  - (5) Rigging gear utilized in communication tower work shall comply with the applicable ASME/OSHA standards. Operator, signal person and rigger qualifications shall be in accordance with OSHA standards and this section. For Navy activities in foreign countries, follow host nation requirements as applicable in lieu of the CFR or ASME standards.
- n. For construction contracts, follow the Unified Facilities Guide Specification UFGS-01 35 26 and U.S. Army Corps of Engineers EM-385-1-1 in lieu of paragraphs 11.1.a through 11.1.g, 11.1.j through 11.1.m and appendix P, figures P-1 and P-2.

## 11.2 Contracting Officer Responsibilities

- a. The contracting officer will rely on PRY33 office technical expertise for oversight of all contractor-owned crane and rigging operations. Additionally, the PRY33 office to provide oversight of contractor accident investigations and corrective actions. The degree of oversight shall be based upon the risk to personnel and property; however, oversight shall be performed at least once and the minimum periodicity shall be not more than every 30 days. When critical lifts are involved, oversight periodicity shall be not more than every 14 days. Appendix P, figure P-2, provides a checklist that shall be used during oversight of contractor crane and rigging operations. Copies of appendix P, figure P-2, shall be kept on file for one year. Personnel performing oversight shall complete the Contractor Crane Awareness training course (see section 7) or the NAVFAC 40-hr Contract Hazard Awareness Training Course.
- b. The PRY33 office will notify the contracting officer via email of any WHE or crane accident upon notification by the contractor. Additionally, the PRY33 office will consolidate the required documents and reports for the contracting officer concurrence and submission to the Navy Crane Center. Upon receipt of required reporting documents from the PRY33 office, the contracting officer shall notify the Navy Crane Center, by e-mail (m\_nfsn\_ncc\_accident@navy.mil) of an accident involving a fatality, in-patient

hospitalization, overturned crane, collapsed boom or any other major damage to the crane or adjacent property as soon as possible when notified by the contractor. For all other accidents, notify the Navy Crane Center as soon as practical but no later than three working days after the accident.

c. The PRY33 office will provide the contracting officer a copy of every accident and near miss report, regardless of severity, upon receipt from the contractor. These requirements are in addition to any notification and reporting requirements promulgated in OPNAVINST 5100.23 and command instructions. Upon receipt of required documents from the PRY33 office, the contracting officer shall sign all crane and rigging accident and near miss reports to indicate that they are satisfied that the contractor's investigation and corrective action are sufficient.

d. For construction contracts, the forms in U.S. Army Corps of Engineers EM-385-1-1 are acceptable in lieu of paragraph appendix P, figure P-2.

**11.3 Host Activity Responsibilities.** The host activity shall ensure that contracts contain the above requirements, concur with the contracting officer's oversight plan, ensure that the oversight plan is being carried out and provide oversight of contractor accident and near miss investigations and corrective actions.

#### **11.4 Other non-Navy-owned cranes and rigging equipment at Naval Activities.**

**11.4.1** Rented or leased cranes or other WHE Operated by Navy or Base Operation Support (BOS) contractors and cranes and rigging equipment owned and operated by BOS contractors and by contractors engaged in NAVSEA OP-5 operations in the United States and its territories. Any rented or leased cranes shall be inspected, load tested and certified to the requirements of section 4 prior to use (except for appendix E hook NDT requirements). Other WHE shall be inspected, tested and marked in accordance with section 14 requirements. For third party certified mobile cranes that cannot be load tested to the specified overload tests of this publication due to OEM restrictions or designs that prevent periodic overload tests, the cranes shall be down rated to 90 percent of the OEM's rated capacity (80 percent for non-mobile cranes) and tested to the requirements of this publication. For long term-leases (over 4 months) and for BOS contractor owned cranes, the maintenance and inspection requirements of section 3 and appendix E hook NDT requirements shall also apply. Additionally, an equipment history file in accordance with section 5, containing those documents required by sections 3 and 4 and their applicable appendices, shall be maintained on each crane. These history files shall be retained for one year after the end of the lease (seven years if the crane is involved in a crane or rigging accident). These requirements shall be included in applicable contracts. See paragraph 4.8 for third party certification requirements. Crane operators shall be licensed /qualified in accordance with the requirements of section 8 (this includes BOS contractor personnel). Crane operations and accident reporting shall be in accordance with sections 9, 10, and 12 (BOS contractor crane and rigging accidents shall be treated and reported as Navy crane and rigging accidents). Rigging equipment and usage practices shall be in accordance with section 14.

#### **C-6.0 The following NAVSUP local text is hereby made part of the statement of work/performance work statement:**

##### **Contractor Unclassified Access to Federally Controlled Facilities, Sensitive Information, Information Technology (IT) Systems or Protected Health Information**

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

##### **APPLICABILITY**

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense, the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy Command under this contract is required to be registered in the Defense Biometric Identification System (DBIDS) and be issued a corresponding ID card or a Department of Defense Common Access Card (DoD CAC). Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

##### **ACCESS TO FEDERAL FACILITIES**

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a Personal Identity Verification (PIV) Card. To access Commander Fleet Activities Yokosuka (CFAY), contractors primarily need to be registered in DBIDS and be issued a corresponding ID card. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at1/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

### **OPERATION SECURITY (OPSEC)**

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

### **START-UP PERIOD**

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed EQIP (Electronic Investigation)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret)

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

### **ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEMS**

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).



Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy Command's CSM and ISSM/IAM upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy Information Technology resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the COR shall sign the SAAR-N as the "supervisor".

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

## **INTERIM ACCESS**

The Command's Security Manager may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

## **DENIAL OR TERMINATION OF ACCESS**

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

## **ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION**

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

## **CONTRACTOR'S SECURITY REPRESENTATIVE**

The contractor shall designate an employee to serve as the Contractor's Security Representative. Within three work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative. The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and Command Security Manager.

## **BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES**

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
- Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
- Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

## **BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES**

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc.) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

- Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the United States (as required by The Deputy Secretary of Defense DTM 08-006 or its subsequent DoD instruction) and
- Must have a favorably completed National Agency Check with Written Inquiries (NACI) or T1 investigation equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the Contractor's Security Representative must submit for all employees each of the following:

- SF-85 Questionnaire for Non-Sensitive Positions
- Two FD-258 Applicant Fingerprint Cards (or the preferred method electronic fingerprint submission)

- Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed National Agency Check with Written Inquiries (NACI) or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM

Failure to provide the required documentation at least 30 days prior to the individual's start date may result in delaying the individual's start date.

**EXPEDITING CONTRACT CLOSEOUT**

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

**Requirements**

Maintenance and repair YCV-20

## Section D - Packaging and Marking

## Section E - Inspection and Acceptance

**E-1.0** Inspection of the work accomplished hereunder shall be performed periodically by an authorized representative during the performance of the work and at the final inspection upon completion of the work. The representative will be identified in writing at time of contract award.

**E-2.0 Quality Assurance:** The Contractor shall provide and maintain a quality management system acceptable to the Government, and shall perform or have performed the inspections and tests pursuant to that system to substantiate that the material and workmanship provided pursuant to the job order conform to the drawings, specifications, job orders, and contract requirements listed herein. For U.S. Naval Ship Repair Facility and Japan Regional Maintenance Center (SRF-JRMC) Yokosuka/Detachment Sasebo, Japan requirements and Commander, Logistics Group Western Pacific (COMLOGWESTPAC) SRU Singapore requirements, the Contractor's quality management system shall be in accordance with that set forth in NAVSEA Standard Item 009-04. In addition to its rights under DFARS clause 252.217-7005 Inspection and Manner of Doing Work of the Master Agreement for Repair and Alteration of Vessels, the Government shall have the right to deem work or material furnished by the Contractor to be incomplete and not in accordance with the requirements of the job order by reason of the Contractor's failure to comply with the requirements of its quality management system and, as such, the Contractor shall not be entitled to progress payments for said work and material.

**E-3.0 Government Quality Assurance Surveillance Plan (QASP):** The Government will monitor the Contractor's performance to ensure that services meet the requirements outlined in the Work Item/ Task Group Instruction in Section C. The Government will utilize a Quality Assurance Surveillance Plan (QASP) to systematically assess the Contractor's performance against established performance standards. The QASP is available as Attachment VI to this solicitation.

### FAR Clauses Incorporated by Reference

| Number    | Title                               | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|-------------------------------------|----------------|----------------------|--------------------------|
| 52.246-2  | Inspection of Supplies-Fixed-Price. | Aug 1996       |                      |                          |
| 52.246-4  | Inspection of Services-Fixed-Price. | Aug 1996       |                      |                          |
| 52.246-16 | Responsibility for Supplies.        | Apr 1984       |                      |                          |

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Inspection and acceptance by the Government.</p> <p>DoDAAC: N61054<br/>CountryCode: USA</p> <p>COMMANDER FLEET ACT YOKOSUKA<br/>PSC 473 BOX 1, FPO AP 96349-1100<br/>FPO, AP 96349-1100<br/>UNITED STATES</p> <p>Alexander Robison, HT1<br/>Email: alexander.w.robison.mil@us.navy.mil<br/>Telephone: 315-243-9072</p> |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## Section F - Deliveries or Performance

**F-1.0 Time of Performance:** The Government has established execution dates for the following milestones and key events as outlined below:

Contractor Work Start Date: 01 AUG 2026

Contractor Work Completion Date: 30 OCT 2026

**F-2.0 Place of Performance:** The performance of all work set forth in SECTION B shall be accomplished aboard the vessel at Contractor's Facility.

| Line Item | Delivery Schedule                                                                                                                       | Quantity | Address and POC                                                                                                                                                                                                                                                                                                                               |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------|----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001      | <p>Delivery Period<br/>From 01 Aug 2026 to 30 Oct 2026</p> <p>Period of Performance<br/>From<br/>01 Aug 2026<br/>To<br/>30 Oct 2026</p> | 1 Job    | <p>Ship To<br/>DoDAAC: N61054<br/>CountryCode: JPN<br/>DEFENSE DISTRIB CT YOKOSUKA JAP<br/>CALL COMM 81 311 743 8344 BLDG 5010, 1 BANCHI TOMARI CHO US<br/>NAVAL BASE<br/>YOKOSUKA 238-0001<br/>JAPAN</p> <p>Alexander Robison, CFAY Port Ops / Boat Shop, HT1<br/>Email: alexander.w.robison.mil@us.navy.mil<br/>Telephone: 315-243-9072</p> |

### FAR Clauses Incorporated by Reference

| Number    | Title            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|------------------|----------------|----------------------|--------------------------|
| 52.242-15 | Stop-Work Order. | Aug 1989       |                      |                          |

## Section G - Contract Administration Data

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                            | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.201-7000 | Contracting Officer's Representative.                            | Dec 1991       |                      |                          |
| 252.217-7007 | Payments.                                                        | Dec 1991       |                      |                          |
| 252.217-7008 | Bonds.                                                           | Dec 1991       |                      |                          |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports. | Dec 2018       |                      |                          |

### DFARS Clauses Incorporated by Full Text

#### 252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

##### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

#### Invoice and Receiving Report (Combo)

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Not Applicable (N/A)

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF        | Data to be entered in WAWF |
|---------------------------|----------------------------|
| Pay Official DoDAAC       | <u>HQ0907</u>              |
| Issue By DoDAAC           | <u>N62649</u>              |
| Admin DoDAAC              | <u>N62649</u>              |
| Inspect By DoDAAC         | <u>N61054</u>              |
| Ship To Code              | <u>N61054</u>              |
| Ship From Code            | ==                         |
| Mark For Code             | ==                         |
| Service Approver (DoDAAC) | ==                         |
| Service Acceptor (DoDAAC) | <u>N61054</u>              |
| Accept at Other DoDAAC    | ==                         |
| LPO DoDAAC                | ==                         |
| DCAA Auditor DoDAAC       | ==                         |
| Other DoDAAC(s)           | ==                         |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Mr. Yuuji Meno / E-mail: yuuji.meno.ln@us.navy.mil / Phone: 046-816-7750 / Mr. Hirofumi Ishizuka / E-mail: hirofumi.ishizuka.ln@us.navy.mil / Phone: 046-816-8255

*(Contracting Officer: Insert applicable information or "Not applicable.")*

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)



## **Section H - Special Contract Requirements**

### **H-1.0 OCCUPATIONAL AND HEALTH STANDARDS FOR SHIPYARD EMPLOYMENT (29 CFR 1915)**

The Contractor shall fully comply with 29 Code of Federal Regulations Part 1915, Occupational and Health Standards for Shipyard Employment (29 CFR 1915), as it is effective at the date of contract award, while performing any contract that is awarded from this solicitation. The provisions of 29 CFR 1915 shall apply to the same extent as if the ship repairing, shipbuilding, and shipbreaking employments and related employments to be performed under the contract are wholly accomplished on the navigable waters of the United States. The Contractor shall comply with applicable provisions of the laws and regulations where the ship repairing, shipbuilding, and shipbreaking employment and related employments are performed in addition to complying with the corresponding provisions of 29 CFR 1915 in instances in which those laws and regulations require compliance with more stringent safety standards. The Contractor shall promptly notify the contracting officer if it becomes aware of any law or regulation that is applicable where the ship repairing, shipbuilding, and shipbreaking employment and related employments are performed that precludes compliance with any provision of 29 CFR 1915.

### **H-2.0 EXTENSION OF COMMERCIAL WARRANTY (NAVSEA) (NOV 1996)**

The Contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale, provided that such warranty is available at no additional cost to the Government. The Contractor shall provide a copy of the standard commercial warranty with the item. The standard commercial warranty period shall begin upon the final acceptance of the applicable material or software. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause, nor does it limit the Government's rights with regard to other terms and conditions of the contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty.

### **H-3.0 Lay Down Space**

The Contractor may request the lay down space adjacent to the ship yard in Yokosuka Naval base. Upon the receipt of approval by the Government, the Contractor may obtain the applicable lay down space. The Contractor shall be responsible for all the cost, but not limited to, for maintaining the facility, utility, safety, and security.

### **H-4.0 Applicable to Contracts Performed in Japan:**

#### **HISTORIC AND CULTURAL RESOURCES**

If ship repair work is being performed in and around potentially significant historic buildings and structures (cultural properties) such as Dry Docks 1 through 6 and Cave 682 in Yokosuka Base, the contractor shall avoid changing the original materials and finishes used in the properties.

If work is being performed to repair or change a historical building/structure, the contractor shall submit design drawings, floor plans, and other relevant operational details to the CFAY Cultural Resource Manager through the Contracting Officer for review and approval prior to the commencement of work.

If work is being performed on a cultural or historical asset, such as a historical building/structure or archeological site, special precautions may be necessary. The contractor shall submit design drawings, floor plans, and other relevant operational details to the CFAY Cultural Resource Manager through the Contracting Officer for review and approval prior to the commencement of work. The contractor shall contact the CFAY Cultural Resources Manager through the Contracting Officer to determine if the work involves any archaeological, historical or cultural assets.

The contractor must conduct an archaeological monitoring by a qualified archaeologist for the planned excavations. During the monitoring, use of flat bladed bucket is required for backhoe operations. If any cultural/historical artifacts/assets include brick structures, manufactures plates indicating years before 1945 on the machines and equipment are discovered during work, the contractor shall notify the Public Works Department (PWD) Environmental Cultural Resources Manager Environmental Branch Cultural Resources Manager (DSN 243-5136/COMM 046-816-5136) through the Contracting Officer, secure the discovery area, and continue to work around the secured area until further direction from the PWD Environmental Cultural Resources Manager Environmental Branch Cultural Resources Manager through the Contracting Officer.

If the items need to be temporarily removed, carefully protect them from disturbance, including weather conditions, unforeseen traffic, and pilfering. The PWD Environmental Cultural Resources Manager Environmental Branch Cultural Resources Manager through the Contracting Officer will provide further direction/guidance on how to protect the items. The Government retains ownership and control over historical and archaeological resources.

The contractor shall carefully protect in-place and report immediately to the Contracting Officer historical and archaeological items or human skeletal remains discovered in the course of work. Upon discovery, the contractor shall notify Cultural, Historical, and/or Natural Resources (CHNR) Manager (DSN 243-5136/COMM 046-816- 5136) through the Contracting Officer, secure the discovery

area, and continue to work around the secured area. The Government retains ownership and control over historical and archaeological resources."

## **JAPANESE CONCILIATION PROCEDURES**

- (a) Except as otherwise provided in this contract any disagreement arising under this contract which is not resolved by the parties to this contract may be submitted to the US-Japan Joint Committee for conciliation in accordance with paragraph 10, Article XVIII, of the Status of Forces Agreement under Article VI of the Treaty of Mutual Cooperation and Security between Japan and the United States of America. Request by the Contractor for conciliation shall be made in accordance with the procedures provided herein.
- (b) In the event the Contractor desires conciliation after the decision of the Contracting Officer has been served upon him, he will first file his appeal from such findings of fact within the time limits described therein before filing request for conciliation with the Joint Committee and then request for appellate authority under the clause of this contract entitled Disputes to suspend its action on his appeal until such time as the Joint Committee has had an opportunity for effecting conciliation.
- (c) The request for conciliation will be submitted by the Contractor through the nearest local Japanese Defense Facilities Administration Bureau to the Contract Conciliation Panel of the Joint Committee. Upon the filing of the request with the Joint Committee, the Contractor will immediately notify the Contracting Officer in writing that the request for conciliation has been filed.
- (d) In the event the disagreement submitted to the Joint Committee under subparagraph (b) above has been resolved through conciliation, it will be the responsibility of the Contractor to notify the appellate authority designated in the clause of this contract, entitled Disputes, of the settlement of the dispute and to withdraw his appeal.
- (e) In the event the Contractor who has submitted a request for conciliation to the Joint Committee under subparagraph (b) above desires, notwithstanding the pending request for conciliation, that action by the appropriate authority under the clause of this contract entitled Disputes be resumed on his appeal, it is his responsibility to so request the said authority in writing. The Joint Committee shall be immediately informed by the Contractor of his action taken hereunder.
- (f) No request for conciliation can be submitted to the Joint Committee in the case of a dispute upon which the final decision of the appropriate authority under the clause of this contract entitled Disputes has been rendered. Pending the hearing of conciliation panel the Contractor shall proceed diligently with the performance of the contract and in accordance with the Contracting Officer's decision. The provisions of this clause shall not prejudice any right which the parties to the contract may have to file a civil suit.

## **CONSUMPTION TAX**

- (a) The Governments of the United States and Japan have agreed that this contract is exempt from the Japanese Consumption Tax. In accordance with paragraph (c) of the clause FAR 52.229-6, "TAXES -- FOREIGN FIXED-PRICE CONTRACTS (FEB 2013)," the offerors or quoters shall not include the Consumption Tax (including underlying taxes) in their proposal or quotations. By submission of your proposal or quotation, you are certifying that your proposal or quotation does not contain any such tax. The following U.S. Government (USG) proof of purchase forms shall be used to claim the exemption at tax offices:

USG Standard Form 1034

USG Standard Form 1113

USG Standard Form 44

Department of Defense Form 1155

Navy Comptroller Form 2277

- (b) The Contractor shall retain the appropriate USG proof of purchase forms set forth above for a period of seven (7) years. In addition, the Contractor shall maintain adequate records containing all pertinent information with regard to the claiming of Consumption Tax exemptions related to this contract. These records shall be subject to review by the Contracting Officer, or his or her designated representative, at any time up to seven (7) years from the date of final payment under this contract.
- (c) Any questions concerning the applicability of the Consumption Tax should be directed to the appropriate local tax office.

## **CUSTOMS AND TAX EXEMPTION**

(a) The Contractor shall, notwithstanding any other clause in this contract to the contrary, be required to submit a request in writing to the Contracting Officer for issuance of a Tax Exemption Certificate for any import duties and all taxes paid or to be paid from which the U.S. Government is entitled to an exemption. These taxes and duties are enumerated in Article XII of the Status of Forces Agreement under Article VI of the Treaty of Mutual Cooperation and Security between the Governments of the United States of America and Japan, regarding facilities areas and the status of United States Armed Forces in Japan. The Contractor's request shall include the following information:

- (1) Name of contractor;
- (2) Contract number and job order number (if applicable);
- (3) Nomenclature of taxable material to be delivered and intended use;
- (4) Quantity of taxable material used or to be delivered; and
- (5) Period of taxable material use.

In the case of gasoline and other petroleum products, the Contractor shall be responsible for making every reasonable effort to determine the accuracy of his figures on consumption. In this regard, the Contractor shall, upon request of the Contracting Officer, present all available data used by the Contractor as the basis for determining such figures. The Contractor shall be required to maintain adequate records containing all pertinent information with regard to the above requirements. Further, these records shall be subject to review by the Contracting Officer at any time up to three years from the date of final payment under this contract.

## Section I - Contract Clauses

### AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

- (a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.
- (b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.
- (c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer(s) are:

NAME: All Authorized NAVSUP Fleet Logistics Center Yokosuka (FLCY) Contracting Officers

ADDRESS: CONTRACTING DEPARTMENT (CODE 200)

NAVSUP FLCY

PSC 473 BOX 11

FPO AP 96349-0011

TELEPHONE: DSN: 315-243-6908 / COMM 011-81-46-816-6908

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                       | Effective Date | Alternate/<br>Deviation | Variation<br>Effective<br>Date |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|--------------------------------|
| 52.202-1  | Definitions.                                                                                                                                                | Jun 2020       |                         |                                |
| 52.203-3  | Gratuities.                                                                                                                                                 | Apr 1984       |                         |                                |
| 52.203-5  | Covenant Against Contingent Fees.                                                                                                                           | May 2014       |                         |                                |
| 52.203-6  | Restrictions on Subcontractor Sales to the Government.                                                                                                      | Jun 2020       |                         |                                |
| 52.203-7  | Anti-Kickback Procedures.                                                                                                                                   | Jun 2020       |                         |                                |
| 52.203-8  | Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.                                                                           | May 2014       |                         |                                |
| 52.203-10 | Price or Fee Adjustment for Illegal or Improper Activity.                                                                                                   | May 2014       |                         |                                |
| 52.203-12 | Limitation on Payments to Influence Certain Federal Transactions.                                                                                           | Jun 2020       |                         |                                |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                         | Jan 2017       |                         |                                |
| 52.204-9  | Personal Identity Verification of Contractor Personnel.                                                                                                     | Jan 2011       |                         |                                |
| 52.204-10 | Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)                                                                             | Feb 2026       |                         |                                |
| 52.204-13 | System for Award Management-Maintenance. (Deviation)                                                                                                        | Feb 2026       |                         |                                |
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                                                                                           | Dec 2014       |                         |                                |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation) | Feb 2026       |                         |                                |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)                                                                                 | Feb 2026       |                         |                                |
| 52.215-2  | Audit and Records-Negotiation. (Deviation)                                                                                                                  | Feb 2026       |                         |                                |
| 52.215-8  | Order of Precedence-Uniform Contract Format. (Deviation)                                                                                                    | Feb 2026       |                         |                                |
| 52.215-14 | Integrity of Unit Prices.                                                                                                                                   | Nov 2021       |                         |                                |
| 52.222-1  | Notice to the Government of Labor Disputes. (Deviation)                                                                                                     | Feb 2026       |                         |                                |
| 52.222-50 | Combating Trafficking in Persons. (Deviation)                                                                                                               | Feb 2026       |                         |                                |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                                                                                        | May 2024       |                         |                                |
| 52.232-1  | Payments.                                                                                                                                                   | Apr 1984       |                         |                                |
| 52.232-8  | Discounts for Prompt Payment.                                                                                                                               | Feb 2002       |                         |                                |
| 52.232-11 | Extras.                                                                                                                                                     | Apr 1984       |                         |                                |
| 52.232-17 | Interest.                                                                                                                                                   | May 2014       |                         |                                |
| 52.232-23 | Assignment of Claims.                                                                                                                                       | May 2014       |                         |                                |
| 52.232-25 | Prompt Payment.                                                                                                                                             | Jan 2017       |                         |                                |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                                                                                           | Oct 2018       |                         |                                |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                                                                                               | Jun 2013       |                         |                                |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                                                                                            | Mar 2023       |                         |                                |

|           |                                                                                           |          |              |          |
|-----------|-------------------------------------------------------------------------------------------|----------|--------------|----------|
| 52.233-1  | Disputes. (Deviation)                                                                     | Feb 2026 |              |          |
| 52.233-1  | Disputes. (Deviation) (Alternate I)                                                       | Feb 2026 | Alternate I  | Feb 2026 |
| 52.233-3  | Protest after Award. (Deviation)                                                          | Feb 2026 |              |          |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation)                                  | Feb 2026 |              |          |
| 52.234-1  | Industrial Resources Developed Under Title III of the Defense Production Act. (Deviation) | Feb 2026 |              |          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation)                                         | Feb 2026 |              |          |
| 52.240-93 | Basic Safeguarding of Covered Contractor Information Systems. (Deviation)                 | Feb 2026 |              |          |
| 52.242-13 | Bankruptcy.                                                                               | Jul 1995 |              |          |
| 52.243-1  | Changes-Fixed-Price. (Deviation)                                                          | Feb 2026 |              |          |
| 52.243-1  | Changes-Fixed-Price. (Deviation) (Alternate II)                                           | Feb 2026 | Alternate II | Feb 2026 |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation)                 | Feb 2026 |              |          |
| 52.246-25 | Limitation of Liability-Services.                                                         | Feb 1997 |              |          |
| 52.246-26 | Reporting Nonconforming Items.                                                            | Aug 2024 |              |          |
| 52.249-2  | Termination for Convenience of the Government (Fixed-Price).                              | Apr 2012 |              |          |
| 52.249-8  | Default (Fixed-Price Supply and Service).                                                 | Apr 1984 |              |          |

#### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                                       | Effective Date | Alternate/<br>Deviation | Variation<br>Effective Date |
|--------------|-----------------------------------------------------------------------------------------------------------------------------|----------------|-------------------------|-----------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                                                              | Sep 2011       |                         |                             |
| 252.203-7001 | Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.                                       | Jan 2023       |                         |                             |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                                                    | Dec 2022       |                         |                             |
| 252.204-7000 | Disclosure of Information.                                                                                                  | Oct 2016       |                         |                             |
| 252.204-7003 | Control of Government Personnel Work Product.                                                                               | Apr 1992       |                         |                             |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors.                                                                           | Jan 2023       |                         |                             |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)                    | May 2024       | Deviation 2024-O0013    | May 2024                    |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.                                 | Jan 2023       |                         |                             |
| 252.204-7022 | Expediting Contract Closeout.                                                                                               | May 2021       |                         |                             |
| 252.209-7004 | Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism. | May 2019       |                         |                             |
| 252.217-7003 | Changes.                                                                                                                    | Dec 1991       |                         |                             |
| 252.217-7004 | Job Orders and Compensation.                                                                                                | May 2006       |                         |                             |
| 252.217-7005 | Inspection and Manner of Doing Work.                                                                                        | Jul 2009       |                         |                             |
| 252.217-7006 | Title.                                                                                                                      | Dec 1991       |                         |                             |
| 252.217-7009 | Default.                                                                                                                    | Dec 1991       |                         |                             |
| 252.217-7010 | Performance.                                                                                                                | Jul 2009       |                         |                             |
| 252.217-7011 | Access to Vessel.                                                                                                           | Dec 1991       |                         |                             |
| 252.217-7012 | Liability and Insurance.                                                                                                    | Aug 2003       |                         |                             |
| 252.217-7013 | Guarantees.                                                                                                                 | Dec 1991       |                         |                             |
| 252.217-7014 | Discharge of Liens.                                                                                                         | Dec 1991       |                         |                             |
| 252.217-7015 | Safety and Health.                                                                                                          | Dec 1991       |                         |                             |
| 252.217-7016 | Plant Protection.                                                                                                           | Dec 1991       |                         |                             |
| 252.222-7002 | Compliance with Local Labor Laws (Overseas).                                                                                | Jun 1997       |                         |                             |
| 252.223-7006 | Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.                                            | Sep 2014       |                         |                             |
| 252.225-7012 | Preference for Certain Domestic Commodities.                                                                                | Apr 2022       |                         |                             |
| 252.225-7048 | Export-Controlled Items.                                                                                                    | Jun 2013       |                         |                             |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                                                           | Jan 2023       |                         |                             |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                                             | Jun 2023       |                         |                             |
| 252.225-7967 | Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)                            | Feb 2024       | Deviation 2024-O0006    | Feb 2024                    |
| 252.225-7972 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)                            | Aug 2024       | Deviation 2024-O0014    | Aug 2024                    |
| 252.225-7976 | Contractor Personnel Performing in Japan (DEVIATION 2018-O0019)                                                             | Aug 2018       | Deviation 2018-O0019    | Aug 2018                    |
| 252.232-7010 | Levies on Contract Payments.                                                                                                | Dec 2006       |                         |                             |
| 252.233-7001 | Choice of Law (Overseas).                                                                                                   | Jun 1997       |                         |                             |
| 252.237-7010 | Prohibition on Interrogation of Detainees by Contractor Personnel.                                                          | Jan 2023       |                         |                             |
| 252.240-7997 | NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)                                                         | Feb 2026       | Deviation 2026-O0025    | Feb 2026                    |
| 252.243-7001 | Pricing of Contract Modifications.                                                                                          | Dec 1991       |                         |                             |
| 252.243-7002 | Requests for Equitable Adjustment.                                                                                          | Dec 2022       |                         |                             |
| 252.244-7001 | Contractor Purchasing System Administration. (Alternate I)                                                                  | Jan 2025       | Alternate I             | Jan 2025                    |
| 252.246-7007 | Contractor Counterfeit Electronic Part Detection and Avoidance System.                                                      | Jan 2023       |                         |                             |
| 252.246-7008 | Sources of Electronic Parts.                                                                                                | Jan 2023       |                         |                             |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                                          | Oct 2024       |                         |                             |

## FAR Clauses Incorporated by Full Text

### 52.222-50 Combating Trafficking in Persons. (Deviation) (Alternate I) (Feb 2026) Alternate I (Feb 2026)

*Alternate I* (FEB 2026) (DEVIATION). As prescribed in 22.1703-2(a)(2), substitute the following paragraph in place of paragraph (c)(1)(i) of the basic clause:

(c)(1)(i)(A) The United States Government's policy prohibiting trafficking in persons described in paragraph (b) of this clause; and

(B) The following directive(s) or notice(s) applicable to employees performing work at the contract place(s) of performance as indicated below:

| Document Title | Document may be obtained from: | Applies to performance in/at: |
|----------------|--------------------------------|-------------------------------|
| ==             | ==                             | ==                            |
| ==             | ==                             | ==                            |

[Contracting Officer must insert title of directive/notice; indicate the document is attached or provide source (such as website link) for obtaining document; and, indicate the contract performance location outside the United States to which the document applies.]

### 52.252-2 Clauses Incorporated by Reference. (Feb 1998)

#### CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/DFARS> Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/> == == [Insert one or more Internet addresses]

(End of clause)

### 52.252-6 Authorized Deviations in Clauses. (Nov 2020)

#### Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS[insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

## DFARS Clauses Incorporated by Full Text

### 252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

#### ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from Naval Criminal Investigative Service (NCIS), Code 21; telephone, DSN 288-9077 or commercial (202) 433-9077. (Contracting Officer to insert applicable information cited in PGI 225.372-1 (DFARS/PGI view)).

(End of clause)

## Section J - List of Attachments

Attachment (I) Work Specification(s):

- YCV-20 SOW

Attachment (II) Proposal Breakdown Form (Contractor Response Required)

Attachment (III) Request for Information Sheet

Attachment (IV) Warranty Tracking Information

Attachment (V) Source of Repair Instruction

Attachment (VI) Quality Assurance Surveillance Plan (QASP)



## Section K - Representations, Certification, & Other Statements

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                      | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|--------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-11 | Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. | Sep 2024       |                      |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation)       | Feb 2026       |                      |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                                                                                             | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                                                  | Sep 2022       |                      |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.                                                | Oct 2016       |                      |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime.                                              | May 2022       |                      |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.                    | Jun 2023       |                      |                          |
| 252.225-7966 | Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)   | Mar 2024       | Deviation 2024-O0006 | Mar 2024                 |
| 252.225-7973 | Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014) | Aug 2024       | Deviation 2024-O0014 | Aug 2024                 |

### FAR Clauses Incorporated by Full Text

**52.203-2 Certificate of Independent Price Determination. (Apr 1985)**

#### CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision \_\_\_\_ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

**52.204-8 Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004) (Mar 2025) Deviation 2025-O0004 (Mar 2025)**

**ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2025)(DEVIATION 2025-O0003 AND 2025-O0004)**

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 336611[insert NAICS code].

(2) The small business size standard is 1300[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

- ☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
- ☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.
- ☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
- ☐ (vi) 52.227-6, Royalty Information.
- ☐ (A) Basic.
- ☐ (B) Alternate I.
- ☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [ *offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR Clause # | Title | Date | Change |
|--------------|-------|------|--------|
| <hr/>        |       |      |        |

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

**52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation) (Feb 2026)**

**VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION)**

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has
  - (i) Waived application under 22 U.S.C. 2593e(d) or (e); or
  - (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

**52.215-6 Place of Performance. (Deviation)**

**(Feb 2026)**

**PLACE OF PERFORMANCE (FEB 2026) (DEVIATION)**

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

|                                                                      |                                                                                                     |
|----------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| Place of Performance (Street Address, City, State, County, ZIP Code) | Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent |
| =                                                                    | =                                                                                                   |

(End of provision)

**DFARS Clauses Incorporated by Full Text**

**252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)**

**PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)**

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**252.204-7998 Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043) (Feb 2026) Alternate A Deviation 2026-O0043 (Feb 2026)**

**Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)**

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted

electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

| FAR/DFARS provision No. | Title | Date | Change |
|-------------------------|-------|------|--------|
| ==                      | ==    | ==   | ==     |
| ==                      | ==    | ==   | ==     |
| ==                      | ==    | ==   | ==     |
| ==                      | ==    | ==   | ==     |
| ==                      | ==    | ==   | ==     |

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)



## Section L - Instructions, Conditions, & Notices to Offerors or Quoters

### L-1.0 GENERAL INSTRUCTIONS

The Statement of Work (SOW), drawings and references will be provided via the Government's Department of Defense (DoD) Secure Access File Exchange (SAFE) web-based file transfer service. DoD SAFE is a secure Government repository which enables the sharing of large files which cannot be transmitted via email. The full user guide for DoD SAFE can be found in the following URL ( <https://safe.apps.mil/help/dod-safe-help.xml>). Any offeror intending to provide a proposal to this solicitation shall request access by sending an email to the following personnel serving as the point of contact for this procurement:

*Points of Contact (POC):*

*Peter Arrieta* (peterjommel.s.arrieta.ln@us.navy.mil), Contracting Officer

*Josabeth Brizuela* (josabeth.a.brizuela.civ@us.navy.mil), Contract Specialist

The Offeror will be required to hold an active U.S. Navy MSRA/ABR Agreement by the proposal submission date in order for their offer to be considered. Non MSRA/ABR holders may request an application for an MSRA or an ABR certification by requesting an application package from: flcy\_msra\_abr\_group@us.navy.mil. Please note that the MSRA/ABR Certification process may require a year to complete.

The following are the general instructions:

- A. The Offeror must respond to all requirements of the solicitation and not alter or rearrange the solicitation. The Offeror is advised that the Government may incorporate any portions of the Offeror's proposal into the resulting contract.
- B. *Questions:* Offerors may submit questions in writing via email to the following points of contact listed above. All questions shall be submitted using Attachment (III) Request for Information (RFI) provided with this solicitation. Questions shall be submitted no later than **29 APR 2026 at 12:00 PM** Japan Standard Time (JST), to ensure the Government is able to adequately address and respond to questions submitted.
- C. *Proposal Validity:* Offerors shall fill in block 12 in front page of Standard Form 33 (SF 33) with 90 days. If an offeror fails to fill in block 12, the proposal will be presumed to be valid for 90 days.
- D. *Amendments:* The Government may revise the solicitation at any time by means of an Amendment. Any solicitation amendments and all related documents will be released electronically via email.
- E. *Subcontracting:* Offerors are reminded of the requirements associated with subcontracting with contractors that are debarred, suspended or proposed for debarment contained at FAR 52.209-6. As with all FAR requirements, please ensure you are familiar with those requirements prior to submitting your proposal.
- F. *Only One Offer:* In accordance with DFARS 215.371, if a single offer is received, at the Contracting Officer's discretion, certified cost or pricing data may be required to be submitted subsequent to proposal receipt.
- G. If any Long Lead Time Material (LLTM) is identified by the offeror during this period, the offeror shall notify the Government through an RFI.
- H. Offerors shall include all anticipated testing work/T-Phase, to include testing work for anticipated standard interference work in your proposal.
- I. The Government intends to award without discussions but reserves the right to conduct discussions if necessary. Therefore, offerors are encouraged to submit their best offer from a price standpoint.
- J. *Ship Check:* To schedule a ship check, offerors shall email a request for a ship check to the POC listed above. Participants will be provided additional information to the ship check and will be subject to security, safety, and other applicable regulations established by CFAY Naval base, SRF-JRMC, and the Commanding Officer of the Ship.

### L-2.0 SUBMISSION OF PROPOSALS

- A. *Proposal Due Date:* All copies of proposals shall be received by the Government no later than the date specified in SF33 block 9 (Front Page) of the Solicitation. Late proposals WILL NOT be considered. Partial proposals or attachments submitted late WILL NOT be considered. Offerors are advised to consult FAR 15.208 related to timely receipt of proposal.
- B. *Electronic Submission:* Offerors are instructed to submit their proposal electronically via email to the personnel serving as POC for this procurement. Other submission methods WILL NOT be accepted. In the event that it is impossible to submit

the proposal via email due to file size limitations, offerors are instructed to request a drop-off from the POC and submit the proposal via DoD SAFE.

C. *Proposal Format*: For electronic copies, the files shall be in the format that is compatible with and capable of being opened with Microsoft Office Suite 2016 or Adobe Acrobat Reader 2017. The entire content of the proposal shall be in English. If any required document is written in a language other than English (e.g. Japanese), the offerer shall make effort to provide an English translation.

### **L-3.0 PROPOSAL CONTENT**

The offeror is required to submit the following:

A. *Solicitation (SF 33)*: The Offeror shall submit one copy of the completed SF33 with blocks 12 through 18 completed as well as all sections (e.g. Section K) with applicable fill-ins. Submission of a signed offer to the Government constitutes agreement and acceptance of the solicited terms and conditions.

B. *Solicitation Amendment (SF 30)*: If applicable, the Offeror shall submit one copy of all acknowledged SF30 by completing and signing block 15.

C. *Price Summary*: Offerors shall submit the fully completed price proposal utilizing Attachment (II) "Proposal Breakdown Form" of Section J. Offerors shall also submit vendor quote's associated with Attachment (II).

D. *Current MSRA or ABR Certification*: Offerors who do not possess a current NAVSUP FLCY MSRA/ABR Agreement will be required to submit a copy of an approved/active U.S. Navy MSRA/ABR Agreement as a Prime Contractor as part of the proposal package.

E. This solicitation is intended only for sources duly authorized to operate and do business in Japan, as prescribed by DFARS 252.225-7042. Contractors outside Japan must submit documentation that unambiguously demonstrates the Offeror's compliance with DFARS 252.225-7042 (e.g., proof of incorporation) as part of their proposal.

#### **FAR Clauses Incorporated by Reference**

| Number    | Title                                                                                                                           | Effective Date | Alternate/ Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | Jan 2017       |                      |                          |
| 52.204-7  | System for Award Management-Registration. (Deviation)                                                                           | Feb 2026       |                      |                          |
| 52.215-1  | Instructions to Offerors-Competitive Acquisition. (Deviation)                                                                   | Feb 2026       |                      |                          |
| 52.215-1  | Instructions to Offerors-Competitive Acquisition. (Deviation) (Alternate I)                                                     | Feb 2026       | Alternate I          | Feb 2026                 |
| 52.233-2  | Service of Protest. (Deviation)                                                                                                 | Feb 2026       |                      |                          |

#### **DFARS Clauses Incorporated by Reference**

| Number       | Title                                                                 | Effective Date | Alternate/ Deviation | Variation Effective Date |
|--------------|-----------------------------------------------------------------------|----------------|----------------------|--------------------------|
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements.                | Nov 2023       |                      |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.            | Mar 2023       |                      |                          |
| 252.215-7013 | Supplies and Services Provided by Nontraditional Defense Contractors. | Jan 2023       |                      |                          |

#### **FAR Clauses Incorporated by Full Text**

52.216-1      **Type of Contract. (Deviation)**      **(Feb 2026)**

TYPE OF CONTRACT (FEB 2026) (DEVIATION)

The Government contemplates award of a Firm-Fixed Price[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.219-4      **Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation)**      **(Feb 2026)**

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

**52.252-1 Solicitation Provisions Incorporated by Reference.**

**(Feb 1998)**

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/DFARS> Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

(End of provision)

**52.252-5 Authorized Deviations in Provisions.**

**(Nov 2020)**

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS [insert regulation name](48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

**DFARS Clauses Incorporated by Full Text**

**252.215-7008 Only One Offer.**

**(Dec 2022)**

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable \_\_\_\_*[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification]*.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

## Section M - Evaluation Factors for Award

### **M-1.0 GENERAL**

The contract resulting from this solicitation will be a Firm-Fixed-Price (FFP) Single award contract. Proposals will be evaluated in accordance with FAR Part 15 "Contracting by Negotiation" utilizing lowest price technically acceptable (LPTA) source selection process identified in FAR 15.101-2. LPTA is a process used in competitive negotiated contracting where the best value is expected to result from selection of the technically acceptable proposal with the lowest evaluated price.

### **M-2.0 BASIS FOR AWARD**

The Government will evaluate offers on a LPTA basis in accordance with FAR 15.101-2. Price has a dominant role in source selection and technical tradeoffs will not be made. As such, no additional credit will be given for exceeding the minimum requirements. Proposals are evaluated simply as either acceptable or unacceptable.

To be eligible for award, the Offeror shall meet the following criteria:

- Offer a total evaluated price determined to be fair and reasonable by the Contracting Officer;
- Obtain a technical acceptability rating of "Acceptable"; and
- Be determined responsible under FAR 9.104.

All proposals will be evaluated for compliance with the terms, conditions, and requirements set forth in the solicitation. An offer that is rated as "Unacceptable" in technical acceptability may be deemed to be an indication of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risk of the proposed work, and may therefore render an Offeror's proposal to be unacceptable or ineligible for award.

The Government intends to award without discussions with Offerors, but reserves the right to conduct discussions if determined to be in the best interest of the Government. Therefore, Offerors are encouraged to submit their best offer from a price standpoint.

### **M-3.0 EVALUATION FACTORS**

Proposals will be evaluated using the factors listed below in no particular order of importance. Proposals are evaluated for acceptability, but not ranked using the non-price factors. In order to be considered awardable, an "Acceptable" rating in every non-price factor must be achieved.

Evaluation factors for award:

- Factor 1 - Price, Lowest total price
- Factor 2 - Technical Acceptability (Non-price factor)

Determination of responsibility is not an evaluation factor, however, an Offeror's financial profile may be assessed to forecast possible risk and to ensure all awardee have adequate financial resources to perform the contract or ability to obtain them [see FAR 9.104-1(a)]. In addition, an Offeror must be registered in the System for Award Management (SAM) at <https://www.sam.gov>. Determination of Contractor Responsibility or Non-Responsibility will be assessed using the information available in SAM.gov and Federal Awardee Performance and Integrity Information (FAPIS). The Offeror must be determined responsible within the definition of FAR 9.104 "Standards" to be eligible for award. Additionally, as indicated in Section L-3.0 paragraph E, the Government will confirm that Offerors outside Japan have the ability to operate and do business in Japan as prescribed under DFARS clause 252.225-7042. Offerors who do not provide proof of authorization to do business in Japan will be determined non-responsible and will not be eligible to receive an award.

#### **Factor 1 - PRICE, LOWEST TOTAL PRICE**

The Government will not evaluate price adjectivally or assign strengths or weaknesses to the price proposal. The Government will evaluate proposals for award purposes by adding the proposed price for all CLIN(s) which will determine the total evaluated price. The Government will analyze the total evaluated price in accordance with FAR 15.404 "Proposal analysis", to determine fair and reasonable pricing.

#### **Factor 2 - TECHNICAL ACCEPTABILITY**

The term "technical", as used herein, refers to non-price factors other than past performance. The purpose of the technical factor is to assess whether the Offeror's proposal will satisfy the Government's minimum requirements. This will be evaluated on an acceptable or unacceptable basis.

Technical acceptability will be determined by evaluating the total number of proposed labor hours (prime and subcontractor) and proposed material and other costs. The technical acceptability will be rated as either "*acceptable*" or "*unacceptable*". To be determined technically acceptable, the number of labor hours and material and other costs proposed by the offeror must be sufficient to reflect an understanding of, and ability to complete, the scope of work.

**WARNING - If the Government determines that an offeror's proposal is technically unacceptable because the proposed number of labor hours or the proposed material or other costs are too high or low, the Government may exclude the proposal from further consideration for award.**

The Government will evaluate the proposal against the technical requirements using the ratings and descriptions outlined in Table M-1.

**Table M-1. Technical Acceptable/Unacceptable Rating Method**

| <b>Adjectival Rating</b> | <b>Description</b>                                           |
|--------------------------|--------------------------------------------------------------|
| Acceptable               | Proposal meets the requirements of the solicitation.         |
| Unacceptable             | Proposal does not meet the requirements of the solicitation. |

The type of work that comprises ship repair, and the conditions under which it is performed, require that contracting is limited to companies or firms that are fully capable of conducting all aspects of shipboard work or boat/craft repair. Master Ship Repair Agreement (MSRA) holders are previously determined to possess the facilities, management, organization and production capabilities to perform an entire complex repair and alteration package. On the other hand, Agreement for Boat Repair (ABR) holders are firms who have demonstrated managerial capabilities to schedule and to control boat/craft repairs.

To ensure the US Navy receives satisfactory repair effort to Navy ships, boats and crafts, this solicitation have a positive qualification requirement for an Offeror to possess a current and active USN MSRA or ABR issued by the U.S. Navy or NAVSUP FLCY. As indicated in Section L-3.0 paragraph D, the Government will confirm the Offeror's existing MSRA/ABR certification. The Government will evaluate the planned approach to obtain an MSRA/ABR or confirm the Offeror's existing MSRA/ABR certification. Any Offeror who do not possess an active MSRA or ABR, will be rated as technically unacceptable and will not be eligible to receive an award.

#### **M-4.0 SOURCE SELECTION**

The source selection will be conducted in accordance with the Federal Acquisition Regulation (FAR), Defense Federal Acquisition Regulation Supplement (DFARS), Navy Marine Corps Acquisition Regulation Supplement (NMCARS), NAVSUP Contracts Handbook, internal NAVSUP guidance and procedures as well as any other applicable regulation or policy. These policy and regulations provide for checks and balance, and independent evaluation of proposals to ensure integrity is maintained throughout the process. Offerors are encouraged to consult the regulations and guidance online.

The Government intends to make an award to the responsible offeror, who submits a technically acceptable proposal that conforms to the requirements of the solicitation, offering the lowest evaluated price.

The Government intends to make an award based on initial proposals; however, the Government reserves the right to enter into discussions. If discussions are applicable, all Offerors selected to participate in discussions shall be advised of deficiencies or significant weaknesses that have been identified during the evaluation, and shall be given an opportunity to submit a final proposal revision (FPR). The evaluation criteria set forth under Section M, shall still be the basis for evaluation of the FPRs.

#### **FAR Clauses Incorporated by Full Text**

##### **52.225-17 Evaluation of Foreign Currency Offers.**

**(Feb 2000)**

Evaluation of Foreign Currency Offers (Feb 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using FY26 Budget Exchange Rate of JPY 150.4415 per USD 1.00 [Contracting Officer to insert source of rate] in effect as follows:

(a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.

(b) For acquisitions conducted using negotiation procedures-

(1) On the date specified for receipt of offers, if award is based on initial offers; otherwise

(2) On the date specified for receipt of proposal revisions.

(End of provision)